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Case Number: 24NNCV03072 Hearing Date: August 5, 2026 Dept: T

Dong

He Li vs. General Motors LLC, a Delaware limited liability company, et al.

Motion

for Attorney's Fees and Costs

Moving Party: Plaintiff

Dong He Li

Responding Party: Defendant

General Motors LLC

Tentative Ruling: Grant

in part

BACKGROUND

On July

22, 2024, Plaintiff Dong He Li ("Plaintiff") filed a complaint against Defendant General Motors LLC ("Defendant"), and other named and unnamed defendants, alleging various causes of action under the Song-Beverly Warranty Act.

On February 10, 2026, Plaintiff

filed a notice of settlement in which Plaintiff informed the Court of the conditional settlement of the entire case and stated that a request for dismissal will be filed no later than May 11, 2026. The hearing date for the OSC re Dismissal (Settlement) was ultimately continued to the instant hearing date.

Plaintiff now moves to recover reasonable attorney's fees, costs, and expenses in the total amount of \$19,378.39.

Defendant opposes, and Plaintiff replies.

MOVING PARTY POSITION

Plaintiff argues that he is entitled to recover his reasonable attorney's fees and costs as the prevailing buyer in the action under Civil Code section 1794(d). Plaintiff argues that the lodestar method should be applied in assessing the reasonableness of his counsel's fees. In applying the lodestar method, the declaration of his counsel M. Nicholas Nita shows that counsel's current hourly rate of \$625.00 is reasonable and warranted under the following factors: (1) the nature and complexity of the litigation; (2) the skill and expertise displayed by counsel (3) the existence prior cases where courts found his counsel's rates to be reasonable; (4) the comparison of these rates to other attorneys in the same community of practice; and (5) the contingent nature of the action.

Plaintiff further argues that he is entitled to recover all costs and expenses, as his verified memorandum of costs shifts the burden of proof to Defendant to rebut the claimed costs set forth therein.

In sum, Plaintiff requests that the Court grant the motion and award \$19,378.39 in total fees, costs, and expenses, which are comprised of the following amounts: (1) \$17,982.00 in attorney's fees; and (2) \$1,396.39 in recoverable costs and expenses.

OPPOSITION

Defendant does not challenge the reasonableness of the underlying hourly rates and instead contends that Plaintiff failed to demonstrate that hours of billed time were reasonably expended by Plaintiff's counsel. Based on the provided billing records, Defendants challenge the following particularized categories of billed time as unsubstantiated or unreasonable: (1) 2.2 hours (\$802.00) for Client Intake and Pre-Litigation Tasks; (2) 1.2 hours (\$375.00) for Preparing Complaint; (3) 1.6

hours (\$563.00) for Tasks Related to Defendant Allen Gwynn Chevrolet; (4) 8.2 hours (\$2,382.00) for Time Incurred by Paralegals for Purely Clerical Tasks; (5) 1.3 hours (\$557.00) for Audit of Records; and (6) 5.6 hours (\$3,312.00) for Motion for Attorney Fees and Costs. In sum, Defendant challenges, at minimum, \$7,991.00 of Plaintiff's claimed attorney's fees.

Defendant also challenges \$860.21 of Plaintiff's claimed costs and expenses.

These costs are comprised of the following: (1) \$150.00 for Jury Fees; (2) \$87.51 for Service of Process; (3) \$497.47 for Electronic Fees; and (4) \$125.23 for "Other" costs.

REPLY

Plaintiff

responds that his claimed attorney's fees are reasonable and necessary as the time spent by his counsel in each of the challenged categories was required to obtain Plaintiff's ultimate goal of a full repurchase. Plaintiff further responds that all costs should be awarded as they were necessary to the case.

ANALYSIS

I. Legal Standard

Civil Code section 1794(d) provides that a buyer who prevails in an action under that section "shall be allowed by the court to recover as a part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and the prosecution of such action."

II. Discussion

A. Entitlement to Attorney's Fees

At the outset, the Court notes that no order or judgment of dismissal has been

entered in this action. “[A] dismissal or judgment in favor of the party seeking fees is a predicate to a fee award.” (Hatlevig v. General Motors LLC (2026) 118 Cal.App.5th 644, 650; see, also, Berti v. Santa Barbara Beach Properties (2006) 145 Cal.App.4th 70, 75 [“It is well settled that statutory costs and attorney fees are incident to the judgment.”].)

However, the parties

do not dispute that a conditional settlement was reached, or that the settlement provided for Plaintiff’s recovery of attorney’s fees and costs. Moreover, because the term “judgment” as used in Civil Code section 1794(d) embraces final dispositions “recognized in other contexts as tantamount or equivalent to a judgment for purposes of Code of Civil Procedure section 998 and/or for allowing the trial court to determine the prevailing party and to award costs and fees under fee-shifting statutes,” the undisputed existence of the settlement provides the necessary predicate for the determination of the prevailing buyer and for the award of reasonable fees and costs. (Wohlgemuth v. Caterpillar Inc. (2012) 207 Cal.App.4th 1252, 1263; see, e.g., Goodstein v. Bank of San Pedro (1994) 27 Cal.App.4th 899, 907 [reasoning that “a compromise agreement contemplating payment by defendant and dismissal of the action by plaintiff is the legal equivalent of a judgment in plaintiff’s favor”].)

Thus, the Court finds

that Plaintiff is the prevailing party and is entitled to recover his reasonable attorney’s fees and costs pursuant to Civil Code section 1794(d). Therefore, Plaintiff’s motion is proper.

B. Reasonableness of Fee Amount

Plaintiff seeks \$17,982.00

in attorney’s fees. The

underlying fee amount of \$17,982.00 reflects 46.1 total hours of completed and anticipated work attributed to various attorneys, law clerks, paralegals, legal assistants, and other staff members from Nita Law Firm. (Nita Decl. ¶ 5, Exh. A (“Billing Records”).)

“[A]bsent circumstances rendering

the award unjust, an attorney fee award should ordinarily include compensation for all the hours reasonably spent, including those relating solely to the fee. We explained that the purpose behind statutory fee authorizations—i.e., encouraging attorneys to act as private attorneys general

and to vindicate important rights affecting the public interest—will often be frustrated, sometimes nullified, if awards are diluted or dissipated by lengthy, uncompensated proceedings to fix or defend a rightful fee claim.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133-34 [emphasis in original].)

“The fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. . . . The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (Id. at p. 1134.)

Therefore, the Court will consider the reasonableness of the \$17,982.00 fee amount sought by Plaintiff through application of the “lodestar” method.

1.
Reasonableness
of Hourly Rate

In applying the lodestar method, the Court begins by determining the ‘reasonable hourly rate,’ i.e., the rate ‘prevailing in the community for similar work.’” (Marshall v. Webster (2020) 54 Cal.App.5th 275, 285 [quoting PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095].) Under the general rule, the “relevant ‘community’ is that where the court is located.” (Marshall, supra, 54 Cal.App.5th at p. 285 [quoting Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc. (2014) 226 Cal.App.4th 26, 71].)

Here, Plaintiff’s counsel and their support staff provided legal services in the instant action at the following rates: (1) Attorney M. Nicholas Nita, \$625.00 per hour; (2) Attorney Justin P. Wisnewski, \$400.00 per hour; (3) Law Clerk Kaylee Wang, \$250.00 per hour; (4) Paralegals Madalina Costescu, Jovanna Garay, and Sophia Aguilar, \$250.00 per hour; and (5) other support staff at rates ranging from \$150.00 to \$200.00 per hour. (Billing Records.) In support of these hourly rates, Plaintiff submits the declaration of his counsel M. Nicholas Nita, wherein counsel provided the experience of each member of his firm who worked on the instant action, as well as reported data and an extensive chronology of cases over the

last several years in which trial courts found his rate to be reasonable, including his current rate of \$625.00. (Nita Decl. ¶¶ 17–74.) The Court also notes that Defendant does not appear to challenge the reasonableness of these rates in opposing this motion. Given the apparent absence of a dispute on the issue, the Court finds these rates to be reasonable.

2.

Reasonableness
of Hours Expended

Padding “in the form of inefficient or duplicative efforts is not subject to compensation.” (Premier Medical Management Systems, Inc. v. California Insurance Guarantee Association (2008) 163 Cal.App.4th 550, 556.) However, parties opposing motions for attorneys’ fees fail to establish an abuse of discretion where they merely contend that amounts of attorneys’ fees are excessive without providing an analysis or factual support. (Maughan v. Google Technology, Inc. (2006) 143 Cal.App.4th 1242, 1250; Avikian v. Wtc Fin. Corp. (2002) 98 Cal.App.4th 1108, 1119; see, also, Premier Medical, supra, 163 Cal.App.4th at p. 560 [emphasizing that opposing parties “submitted no evidence that the hours claimed by counsel were excessive,” and declining to “declare as a matter of law that the hours were unreasonable”]; see, e.g., Villanueva v. City of Colton (2008) 160 Cal.App.4th 1188, 1204 [opposing party “offered no evidence of any kind which might have warranted a reduced fee award.”].

Here, Plaintiff initially seeks recovery for 46.1 hours of work expended on legal services performed by his counsel and the Nita Law Firm in the instant action, as set forth in the submitted billing records. (See Billing Records.)

In opposition, Defendant challenges the reasonableness of this work by examining and identifying particular categories of billed hours that Defendant contends were improperly sought or not actually or reasonably expended, including apparent instances of padding.

In examining each of the entries in the submitted billing records, and

in considering this and other evidence in the record, the Court finds that the following reductions in Plaintiff's stated hours of expended work are warranted due to their unreasonableness. (See Billing Records.) First, the Court strikes all time attributed to purely administrative or clerical tasks, including, but not limited to, calendaring deadlines, gathering documents, filing and service of documents, and updating the client file, amounting to a total reduction of \$2,342.00 based on 10.6 hours of work at varying rates. Second, the Court finds that the total billed hours of time expended on the preparation of the complaint are unreasonable given the evidenced use of a template and the straightforward nature of the alleged causes of action, thus warranting a total reduction of \$175.00 based on 0.7 hours of work. Next, the Court finds that the total billed hours of time expended on the preparation of propounded discovery are likewise unreasonable given the evidenced use of templates and the straightforward nature of the underlying lemon law action, thus warranting a total reduction of \$511.00 based on 1.6 hours of work at varying rates. In addition, the Court finds that the total billed and anticipated hours of time expended in connection with the instant fee motion, including, but not limited to, the preparation of the memorandum of costs, attorney review of the file, and preparation of the motion and reply papers, are unreasonable, thus warranting a total reduction of \$4,137.00 based on 6.8 hours of work at varying rates. (Ibid.)

The Court otherwise finds Plaintiff's counsel's declared hours of work were reasonably expended and shall only reduce the attorney's fees sought by Plaintiff in the total amount of \$7,165.00, which reflects the sum of the reductions set forth above.

Therefore, the motion for attorney's fees is granted in the reduced amount of \$10,817.00.

D. Costs and Expenses

Plaintiff

seeks to recover \$1,396.39 in costs and expenses pursuant to Civil Code section 1794(d). Defendant challenges \$860.21 of the requested costs. However, in reviewing the expense records provided in support of Plaintiff's cost memorandum, the Court finds that the only costs that does not appear to be recoverable are the \$125.23 in "other"

costs attributed to Plaintiff's use of "Attorneys in Motion" as a convenience service that appears to have provided court appearance coverage for a case management conference. The Court otherwise finds that the remaining costs appear to be proper on their face and are thus recoverable, as Defendant failed to carry its burden of showing that these costs were unreasonable and unnecessary.

Thus, the motion for costs and expenses is granted in the reduced amount of \$1,271.16.

Furthermore, as Defendant challenges these same costs in its separately filed motion to tax costs, and as the Court has determined that only the \$125.23 in "other" costs are not recoverable, the Court finds that the issues presented by Defendant's motion to tax costs are now mooted.

RULING

Plaintiff Dong He Li's Motion for Attorney's Fees and Costs is GRANTED IN PART in the amounts of \$10,817.00 in reduced attorney's fees and \$1,271.16 in costs and expenses, totaling \$12,088.16.

The Court also advances and vacates the Hearing on Motion to Tax Costs, set for 08/20/26.